

CHILD SAFEGUARD POLICY



WHO IS A CHILD?

In the biological sciences, a child is usually defined as a person between birth and puberty, or between the developmental period of infancy and puberty. Legally, the term child may refer to anyone below the age of majority or some other age limit.



WHAT ARE CHILD RIGHTS?

Children are human beings and not the property of their parents or helpless objects of charity, thus they are subject to their own rights. Child Rights are minimum entitlements and freedoms that should be afforded to all persons below the age of 18 regardless of race, colour, gender language, religion, opinions, origins, wealth, birth status or ability and therefore apply to all people everywhere. The basic rights include right to protection , survival , development and participation. The Indian Constitution guarantees certain rights to children, including the right to free and compulsory education, protection from hazardous employment, and protection from abuse and exploitation.



CHILD MARRIAGE

WHAT IS CHID MARRIAGE?

Child marriage refers to any formal marriage or informal union between a child under the age of 18 and an adult or another child.

CAUSES

Poverty

Lack of education

Insecurity

Tradition and religion

CONSEQUENCES

Child marriage robs girls of their childhood and threatens their well-being. Girls who marry before 18 are more likely to experience domestic violence and less likely to remain in school. They have worse economic and health outcomes than their unmarried peers, which are eventually passed down to their own children, straining a country's capacity to provide quality health and education services.

Child brides often become pregnant during adolescence, when the risk of complications during pregnancy and childbirth increases. The practice can also isolate girls from family and friends, taking a heavy toll on their mental health



Strategies for Prevention:

- ➡ Education: Keep girls in school, provide access to quality education.
- ➡ Empowerment: Life skills training, economic opportunities for girls and women.
- ➡ Community Engagement: Challenging harmful social norms, awareness campaigns, involving religious and community leaders.
- ➡ Legal Frameworks: Enacting and enforcing laws that set the minimum age of marriage at 18 for both boys and girls.
- ➡ Economic Support: Poverty alleviation programs, conditional cash transfers to families who keep girls in school.
- ➡ Access to Services: Providing sexual and reproductive health services, safe spaces, and legal aid for child brides.

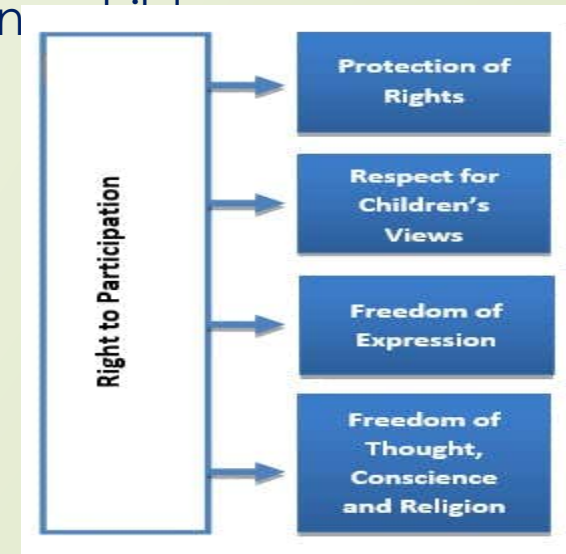
Key Legislation

The Prohibition of Child Marriage Act, 2006, prohibits the solemnization of child marriages and provides for annulment of such marriages. It also outlines penalties for those who perform, conduct, or abet a child marriage.



RIGHT TO PARTICIPATION

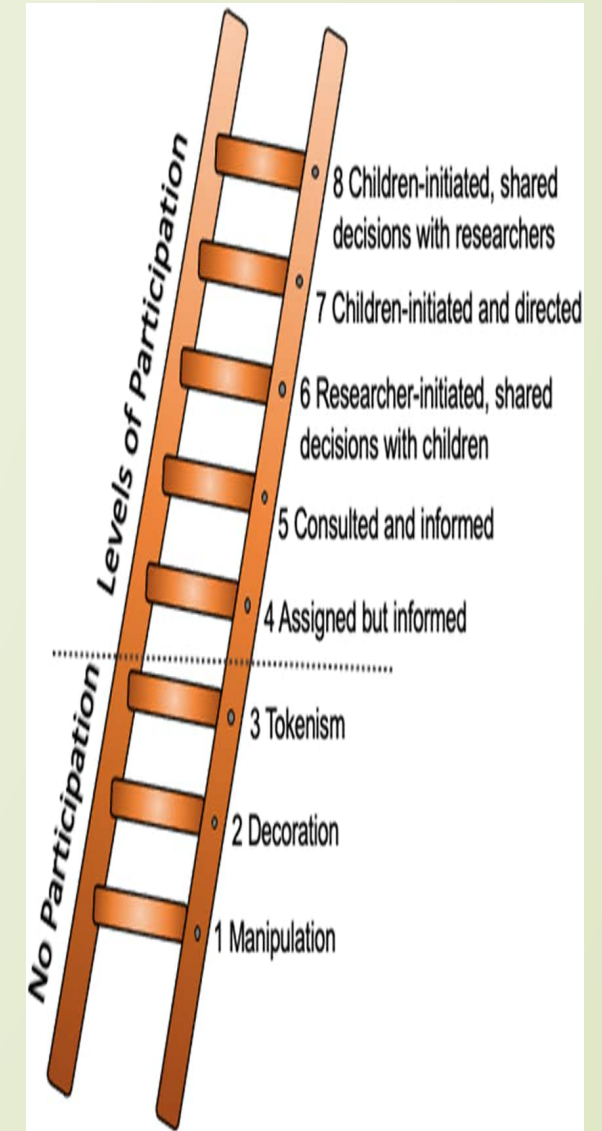
Right to participation is an entitlement that the children have in any decision made for and on behalf of them, affecting them in family schools community, governance or in any other settings. Children have their own freedom to decide upon, choosing friendship, sports games, arts, recreations, social work, gaining knowledge for skills. The principle affirms that children are full-fledged persons who have the right to express their views in all matters affecting them and requires that those views be heard and given due weight in accordance with the child's age and maturity. It recognizes the potential of children to enrich decision-making processes, to share perspectives and to participate as citizens and actors of change. The practical meaning of children's right to participation must be considered in each and every matter concerning children.



RIGHT TO PARTICIPATION INCLUDES

- ➡ Freedom of thought, conscience and religion
- ➡ Right to information
- ➡ Right to privacy
- ➡ Freedom of expression
- ➡ Freedom of association and peaceful assembly

The Ladder of Participation, a model developed by Roger Hart, outlines varying levels of children's participation, moving from non-participation to increasing levels of agency and control. It emphasizes the importance of children's voice and their right to participate in decisions that affect them. The ladder helps to understand the different ways children can be involved in processes and decisions, ranging from simply being informed to being actively involved in planning and decision-making.



RIGHT TO EDUCATION

The Right to Education Act (RTE), enacted in 2009, guarantees free and compulsory education for children aged 6 to 14 in India. This act, enshrined in Article 21A of the Indian Constitution, makes elementary education a fundamental right. The Act also provides that no child shall be held back, expelled, or required to pass a board examination until the completion of elementary education. There is also a provision for special training of school dropouts to bring them up to par with students of the same age.



COMPULSORY EDUCATION

The government is legally obligated to ensure that all children aged 6-14 are enrolled in school, attend regularly, and complete elementary education. This includes making provisions for children who may be excluded due to socio-economic, cultural, or geographical factors.

FREE EDUCATION

The government is responsible for providing elementary education without any fees, charges, or expenses that would prevent a child from accessing education. This ensures that children from all socioeconomic backgrounds have the opportunity to attend school.

RIGHT TO FREE AND COMPULSORY EDUCATION



The Right to Education Act mandates that an out of school child should be admitted to an age appropriate class and provided with special training to enable the child to come up to age appropriate learning level.

All kinds of physical punishment and mental harassment, discrimination based on gender, caste, class and religion, screening procedures for admission of children capitation fee, private tuition centres, and functioning of unrecognized schools are prohibited in this act.

Education is seen as crucial for social and economic development, empowering individuals and contributing to a more equitable society. By making education a right, the RTE Act helps to reduce social and economic inequalities and create opportunities for all children. The Act also emphasizes the importance of quality education, aiming to improve the learning environment and teacher training.



ICDS – EARLY CHILDHOOD CARE

ICDS(Integrated Child Development Services) is a government program for early childhood care providing nutritional meals, preschool education, primary health, immunization, health check-up and referral services to children under 6 years of age and their mothers. Launched in 1975, it is one of the world's largest programmes providing for an integrated package of services for the holistic development of the child. ICDS is a centrally sponsored scheme implemented by state governments and union territories. The scheme is universal covering all the districts of the country.



Following services are provided under umbrella ICDS Scheme

- ➔ **Supplementary Nutrition:** Provides nutritious food to children, pregnant women, and lactating mothers to prevent malnutrition.
- ➔ **Pre-school Education:** Offers early childhood education and activities to children aged 3–6 years for overall development.
- ➔ **Nutrition & Health Education:** Educates mothers and families about healthy eating and hygiene practices.
- ➔ **Immunization:** Administers vaccines to children and pregnant women to protect against preventable diseases.
- ➔ **Health Check-up:** Conducts regular health examinations for children and mothers to monitor their well-being.
- ➔ **Referral Services:** Refers children and mothers with health concerns to specialized medical facilities for further care.



OBJECTIVES

- ➡ To improve the nutritional and health status of children in the age group of 0-6 years.
- ➡ To lay the foundation for proper psychological, physical and social development of the child.
- ➡ To reduce the incidence of mortality, morbidity, malnutrition and school dropout.
- ➡ To achieve effective co-ordination of policy and implementation amongst the various departments to promote child development, and
- ➡ To enhance the capability of the mother to look after the normal health and nutritional needs of the child through proper nutrition and health education.

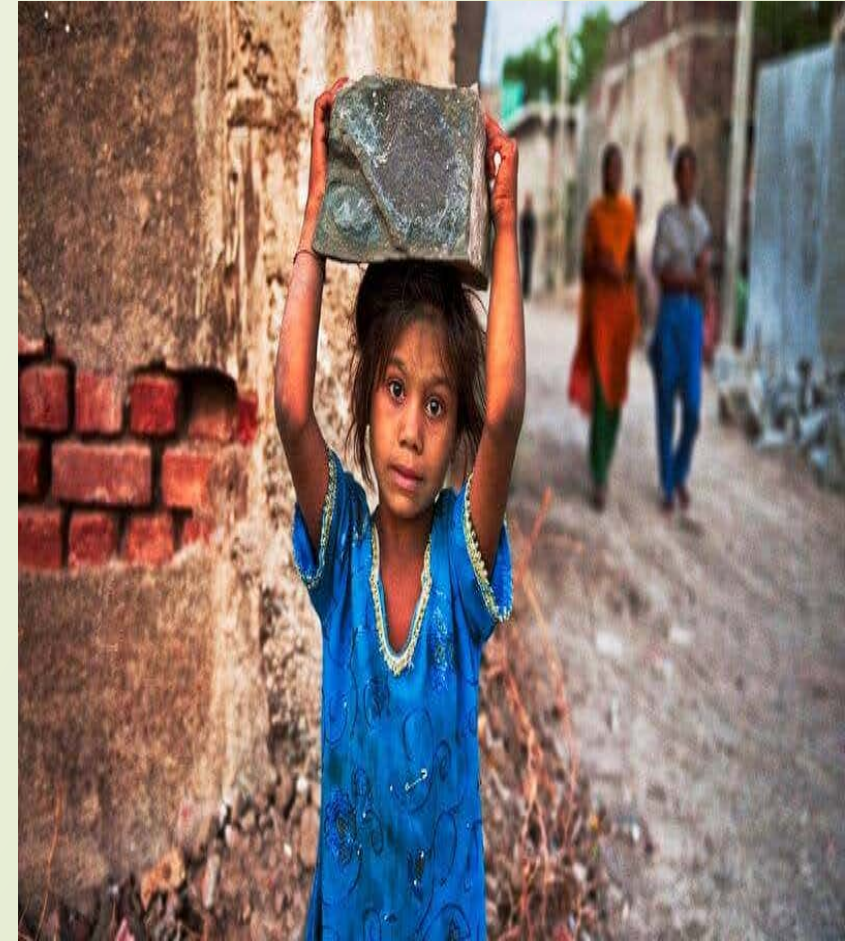


CHILD LABOUR

WHAT IS CHILD LABOUR ?

Child labour refers to work that children are too young to perform or that – by its nature or circumstances – can be hazardous. Unlike activities that help children develop (such as contributing to light housework or taking on a job during school holidays), child labour causes harm to a child's health, safety or moral development.

The Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 is a Law enacted on 23 December 1986 by the Parliament of India and Ministry of Labour and Employment. defines a "child" as a person who has not completed their 14th year of age. Children between age of 14 and 18 are instead defined as "Adolescent", and the law allows them to be employed except in mining, flammable substance- and explosives-related work, and other hazardous processes



Substantial changes were made in the act in 2016 which prohibited children below 14 years to work and for children between 14-18 years of age, several provisions were made. The Act in total prohibits approximately 13 occupations and 51 processes for the employment of children. Article 24 of the Indian Constitution includes the provision for the prohibition of employment of children in factories.

A child however can help his/her family or family enterprise (which is not a hazardous occupation) or their home-based work, including farming after school hours and during holidays. Family in relation to a child means his/her father, mother, brother, sister and father's sister and brother and mother's sister and brother. A child below the age of 14 years will be allowed to work as an artist in the audio-visual entertainment industry, including the advertisement, films, television serials or any other entertainment or sports activities except the circus, subject to conditions and safety measures.

Child Labour and Child Labour Amendment Bill, 2016	
 Ban on employment of children below 14 years.	 Children below 14 allowed to work only in family enterprises and farms after school hours and during holidays.
 Linking the bill with Right to Education (RTE) Act.	 Punishment enhanced to up to two years and/or fine for employers who violate the act.
 Prohibiting employment of adolescent (14-18 years) in hazardous occupations and processes.	

Rules which should be followed by Employers

Working Hours:

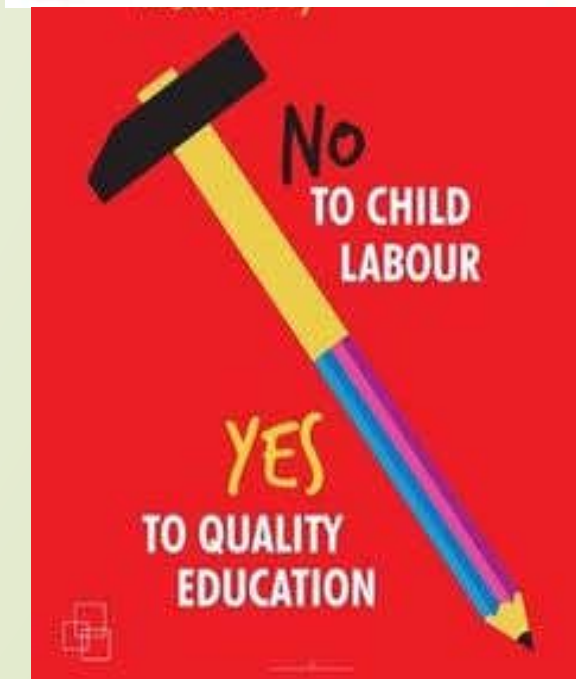
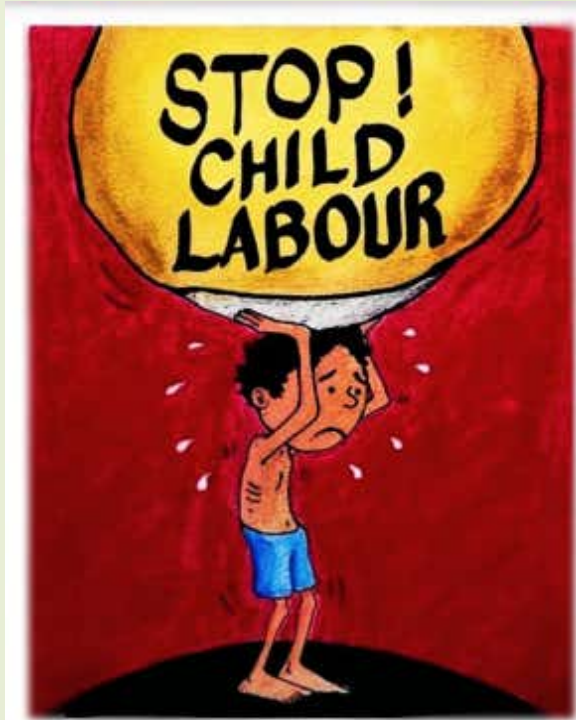
- ➡ No work between 7 p.m. and 8 a.m.
- ➡ No overtime permitted. Max 3 hours of continuous work, followed by 1-hour break
- ➡ Total working hours must not exceed 6 hours/day (including break).

Health & Safety:

- ➡ Employer must provide basic facilities like drinking water, toilets, ventilation, and waste disposal.

Employment Rules:

- ➡ Age certificate must be produced.
- ➡ Employer must notify the Factory Inspector when employing a child.
- ➡ A child cannot work in more than one establishment per day.
- ➡ Must be given one full day off per week, with the holiday notice displayed permanently.



JUVENILE JUSTICE SYSTEM

Under the Juvenile Justice (Care and Protection of Children) Act, 2015, a juvenile is defined as a person who has not completed eighteen years of age. This means that anyone under the age of 18 is considered a juvenile according to this act.

The Juvenile Justice (Care and Protection of Children) Act, 2015, in India, consolidates and amends the law related to children in conflict with the law and children in need of care and protection. It aims to provide a child-friendly approach in handling matters related to children, focusing on their basic needs, development, and social reintegration. The Act also addresses issues like adoption, institutional care, and the principle of repatriation.



Trial of Older Juveniles

Age Consideration:

Children aged 16–18 years who commit serious or heinous offenses (such as murder, rape, or grievous hurt) are not automatically tried as adults.

Assessment Process:

The Juvenile Justice Board (JJB) conducts a preliminary assessment to determine if the child can be tried as an adult. The assessment considers the child's mental and physical capacity, ability to understand consequences, and the circumstances of the offense.

Transparency and Safeguards:

The Board's decision must be well-reasoned and can be appealed. Even if tried as an adult, the child is not sent to regular prisons but to observation homes or special homes with a focus on reform and education.



Rehabilitation Focus

Institutionalization as Last Resort: Children are placed in institutions only when no other option is available.

Repatriation and Restoration:

Efforts are made to reunite the child with their family or community. If not possible, the child is placed in foster care or adoption.

Fresh Start:

The Act emphasizes giving children a second chance. Focuses on education, vocational training, and counseling to help them reintegrate into society.

Non-Punitive Approach:

The aim is to reform and rehabilitate, not to punish. Regular follow-ups ensure the child's well-being after reintegration.



THANK YOU

